

STATE OF NEW YORK

7824--A

2025-2026 Regular Sessions

IN ASSEMBLY

April 11, 2025

Introduced by M. of A. PEOPLES-STOKES, COLTON -- read once and referred to the Committee on Governmental Employees -- recommitted to the Committee on Governmental Employees in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to authorize the widow of William James Middlebrooks to file a retirement option election form

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Notwithstanding any other provision of law to the contrary,
2 Janice Middlebrooks, the widow of William James Middlebrooks who was
3 employed by the Albion Correctional Facility, was a member of the New
4 York state and local employees' retirement system, was diagnosed with
5 cancer in January of 2004, was advised on October 31, 2004 that he would
6 be unable to return to employment as the result of his malignancy and
7 the treatment therefor, and died on December 3, 2006 prior to filing a
8 retirement election form with the New York state and local employees'
9 retirement system, shall be authorized to file such option election form
10 on behalf of her deceased husband with a joint allowance full option, if
11 no later than one year from the effective date of this act she shall
12 submit a request therefor to the state comptroller. In addition, his
13 application for disability retirement shall be deemed to have become
14 effective on November 1, 2004. All retirement benefits payable pursuant
15 to the provisions of this act shall be paid to Janice Middlebrooks and
16 shall be in addition to any other death benefits paid.

17 § 2. This act shall take effect immediately.

FISCAL NOTE. -- Pursuant to Legislative Law, Section 50:

This bill would authorize Janice Middlebrooks, the widow of retiree William James Middlebrooks, to file a new joint allowance full option election form with the New York State and Local Employees' Retirement

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD04512-06-6

System (NYSLERS) and revise the member's date of retirement to November 1, 2004.

There will be an immediate past service cost of \$489,000 as of February 1, 2027, which will be shared by all participating employers in NYSLERS.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated April 15, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-151. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.